

12. 9:00 AM CASE NUMBER: C26-00384

CASE NAME: MATHIEU CASSAGNE VS. FCA US LLC

*MOTION/PETITION TO COMPEL ARBITRATION

FILED BY: FCA US LLC

TENTATIVE RULING:

Introduction

Before the Court is Defendant FCA US LLC's ("FCA" or "Defendant") motion to compel arbitration and stay this action. The Motion relates to Plaintiffs' Complaint for two causes of action breach of express and implied warranties under the Song-Beverly Consumer Warranty Act filed on February 3, 2026.

For the reasons explained below, Defendant's motion to compel arbitration is **GRANTED**.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability..." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Evidentiary Objections

Plaintiff's Objections

- 1) OVERRULED.
- 2) OVERRULED.
- 3) OVERRULED.
- 4) OVERRULED.
- 5) OVERRULED.

Analysis

Defendant's Initial Burden

The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party “can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44.)

Defendant has presented a signed an Agreement to Arbitrate between Defendant and Plaintiff, a document separate from the Lease Agreement between Plaintiff and the dealership. The custodian of records for the dealership, Finance Manager and Custodian of Records Shaun Brittain, authenticates the Agreement to Arbitrate between Defendant and Plaintiff. (Brittain Decl. ¶¶ 6-8.)

Thus, Defendant has met its burden by proving the existence of a valid arbitration agreement between it and Plaintiff. Now the burden shifts to Plaintiff to prove a valid defense to the arbitration agreements exist by a preponderance of the evidence.

Authentication of the Agreement to Arbitrate

Authentication standards are relaxed in petitions to compel arbitration. “Normal authentication procedures” are not required. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218–219.) Once the moving party produces the agreement, the burden shifts to the opposing party to show that the document is inauthentic. Plaintiff has not met this burden.

Plaintiff argues that Defendant has failed to provide competent evidence of an arbitration agreement.

Defendant has submitted the standalone “Agreement to Arbitrate”, bearing Plaintiff’s signature. Pursuant to that agreement, both parties agreed that Plaintiff or FCA would resolve any dispute through a neutral, binding arbitration process, not via court action.

A document may be authenticated by a witness who is familiar with the record-keeping system used to generate it. (Evid. Code, § 1414; *People v. Goldsmith* (2014) 59 Cal.4th 258, 266–267.) Declarant, Finance Manager, and Custodian of Records Shaun Brittain identifies the source of the documents (FCA’s business records), explains how they were obtained in the regular course of business, and describes their contents with sufficient detail. Plaintiff does not dispute receiving the documents or that Plaintiff’s signature appears on them.

Plaintiff offers no credible competing evidence and does not deny executing the subject agreement. Defendant has met its burden of proving the existence of a signed arbitration agreement and Plaintiff has not rebutted that showing.

Defendant argues that to the extent that Plaintiff raises hearsay objections, the subject agreement falls within the business-records exception and is independently admissible as an operative contractual document. Defendant also contends that the agreement is offered for to prove its existence, not for the truth of its contents.

Consideration in the Agreement to Arbitrate

Plaintiff contends that the subject Agreement is void for lack of consideration. This is incorrect. Plaintiff received the express written warranty for their vehicle issued by FCA, the terms of which they now seek to enforce. Plaintiff argues that FCA made “affirmations, promises, and descriptions of the goods sufficient to create an express warranty through advertisement of the warranties to the general public.” But the same express warranties Plaintiff cites contain the arbitration provision they now seek to avoid. Plaintiff cannot seek to enforce the warranties FCA issued in a warranty action but choose to enforce only those terms they select.

Furthermore, mutual promises to arbitrate also constitute adequate consideration for an arbitration agreement. (See *Garner v. Inter-State Oil Co.* (2020) 52 Cal.App.5th 619, 625.) The first line under the notice of agreement to arbitrate reads, “Pursuant to the Agreement to Arbitrate contained below, you agree that you or FCA will resolve any dispute through a neutral, binding arbitration process and not by a court action.” Thus, even if Defendant had not offered a warranty contract as consideration for Plaintiff’s Agreement to Arbitrate, the subject agreement would be supported by consideration based on the parties’ mutual obligation to arbitrate their disputes.

Lastly, Defendant notes that California law presumes written agreements are supported by adequate consideration (Civ. Code §§ 1614–1615.) and Plaintiff has presented no evidence rebutting that presumption.

Absence of Defendant’s Signature

Defendant can enforce the agreement without signing it. “[T]he writing memorializing an arbitration agreement need not be signed by both parties in order to be upheld as a binding arbitration agreement.” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176 (*Serafin*).) “Just as with any written agreement signed by one party, an arbitration agreement can be specifically enforced against the signing party regardless of whether the party seeking enforcement has also signed, provided that the party seeking enforcement has performed or offered to do so.” (*Id.* at p. 177.) The nonsignatory must provide evidence confirming the existence of an agreement, which can be based on conduct showing implied ratification or acceptance. (*Id.* at p. 176.) In *Serafin*, the court found sufficient evidence where the employer wrote the agreement, the agreement was printed on its letterhead, and the employer showed its intent to be bound by filing a motion to compel arbitration. (*Id.* at pp. 176-177.)

The agreement states “...this agreement to arbitrate ... applies to any dispute between you and FCA US LLC and its affiliates (together “FCA,” “Stellantis,” “we” or “us”).” (Brittain Decl., Ex. B.) The Agreement bears a Stellantis letterhead, and it repeatedly refers to “FCA” (*Id.*) The agreement defines “FCA US LLC and its affiliates” as “‘FCA,’ ‘Stellantis,’ ‘we’ or ‘us’” (*Id.*) It provides the physical address of the FCA US Office of the General Counsel at 1000 Chrysler Drive, CIMS 485-13-62, Auburn Hills, M1 48326-2766.” (*Id.*) It gives the customer the option to opt out of the Agreement and states, “If you do not opt out, then this agreement to arbitrate is binding.” (*Id.*)

The evidence before the Court shows defendant wrote the agreement and intends to be bound by it. As in *Serafin*, Plaintiff has not disputed that defendant “performed all the duties required of it under the arbitration agreement.” (*Serafin, supra*, 235 Cal.App.4th at p. 177.)

Stay

The Arbitration Provision in the Lease indicates that any arbitration shall be governed by the Federal

Arbitration Agreement. (Brittain Decl., Ex. A.)

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration agreement.” (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Plaintiff’s opposition is silent as to Defendant’s request for a stay. The Court finds good cause to stay this action in granting Defendant’s Motion to Compel Arbitration.

Conclusion

Defendant’s motion to compel arbitration is **GRANTED**. The Court orders the Parties to submit their dispute to arbitration in accordance with the Arbitration Provision in the subject Lease Agreement. The Court orders this matter to be **STAYED** in full, pending conclusion of the arbitration.

The Court sets a Case Management Conference (CMC) / Arbitration Status Review **on March 23, 2027, in Dept. 34 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration not less than ten (10) court days prior to the CMC.** Parties may appear at the CMC by Zoom.

13. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

14. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
***HEARING ON MOTION IN RE: TO STRIKE**
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.